

without an anchor; and failed to comply with statutory requirements governing the rental of motorboats.

Whether these alleged acts or omissions increased the risks beyond those inherent in recreational boating presents factual issues that cannot be resolved as a matter of law on summary judgment or adjudication. Accordingly, the court finds that AWS has not established that the primary assumption of risk constitutes a complete defense to Plaintiff's claims.

AWS argues in the alternative that Plaintiff cannot establish causation because Goodwin's operation of the boat constituted the sole cause of Plaintiff's injuries. Causation ordinarily presents a question of fact and may be resolved as a matter of law only where the undisputed facts permit but one reasonable conclusion. (*Kurini v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864) Plaintiff contends AWS's alleged failures in training, instruction, warnings, equipment, and statutory compliance contributed to the circumstances leading to the accident. Plaintiff has presented evidence by which a reasonable trier of fact could conclude that AWS's conduct and the conduct of the vessel operators concurrently contributed to Plaintiff's injuries. The existence of potential negligence on the part of Goodwin or others involved in operating the boat does not establish, as a matter of law, that AWS's conduct was not a substantial factor in causing the harm.

When viewing the evidence in the light most favorable to Plaintiff, the court finds triable issues remain as to whether AWS's alleged acts or omissions were a substantial factor resulting in Plaintiff's injuries.

Finally, AWS seeks adjudication of Plaintiff's claim under Nevada Revised Statute section 488.730. Here, plaintiff establishes that factual disputes remain regarding AWS's compliance with the statutory requirements governing motorboat rentals and whether any alleged noncompliance contributed to the accident. The court finds that these disputes preclude summary adjudication.

AWS's motion for summary judgment, or in the alternative, summary adjudication, is denied.

6. S-CV-0051371 Engineer, Cash v. Ashby, Kaitlyn Emily

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise for Cash Engineer

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in

this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Elijah Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Leona Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Riley Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

7. S-CV-0053860 Gascon, Haley v. Sutter Medical Found.

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion for Summary Judgment

Defendant Richard G. Juarez moves for summary judgment of plaintiffs' complaint for (1) medical negligence and (2) loss of consortium. Plaintiffs' do not oppose the motion.

Defendant's request for judicial notice is granted.

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant submits evidence, including expert testimony, that he was the anesthesiologist for plaintiff Haley Gascon's appendectomy on July 29, 2023 and that his treatment of plaintiff complied with the standard of care at all times. (SSUMF Nos. 2–4, 6.) Performing surgery, including a laparoscopic appendectomy, is outside the anesthesiologist's scope of practice. (SSUMF No. 5.) To a reasonable degree of medical